



CHAPTER lviii.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and thirty-four to the thirtieth day of September one thousand nine hundred and thirty-five and for other purposes.

A.D. 1934.

[12th July 1934.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts (in the principal Act and in this Act referred to severally as an "Annual Money Act") to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period") :

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and thirty-four regulated by the London County Council (Money) Act 1933 :

And whereas by section 4 of the principal Act the Council are authorised during any financial period to

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A.D. 1934. — expend on capital account for such purposes as may be mentioned in the Annual Money Act relating to that period such sums as they may think fit not exceeding the amounts specified in that Act in relation to those purposes for the financial year and the following six months comprised in that period respectively :

And whereas by section 5 of the principal Act power is conferred on the Treasury in case the amounts so specified as aforesaid in relation to any financial period are in any case found to be insufficient to authorise the Council to expend on capital account during that period such further sums as may be proved to the satisfaction of the Treasury to be necessary not exceeding in the aggregate in the financial year and the following six months respectively comprised in that period such amounts as may be specified for the purpose in the Annual Money Act relating to that period :

And whereas by section 7 of the principal Act the Council are authorised during any financial period to lend to the bodies and persons mentioned in that section and those bodies and persons are authorised to borrow from the Council money to an extent not exceeding in the financial year and the following six months respectively comprised in that period such amounts as may be specified in the Annual Money Act relating to that period :

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and thirty-four to the thirtieth day of September one thousand nine hundred and thirty-five (hereinafter referred to as "the financial period 1934-1935") should be regulated as by this Act provided :

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1934-1935 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council :

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And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1934–1935 are set out in Part I of the schedule to this Act: A.D. 1934.
—

And whereas the further sums which the Treasury may authorise the Council to expend on capital account during the financial period 1934–1935 are set out in Part II of the said schedule:

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1934–1935 are set out in Part III of the said schedule:

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1933 authorised to expend or lend but have not before the first day of April one thousand nine hundred and thirty-four expended or lent:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited for all purposes as the London County Council (Money) Act 1934 and shall be read and have effect as one with the principal Act. Short title
and con-
struction.

2. In and for the purposes of this Act and except where the context otherwise requires— Interpreta-
tion.

“the Council” means the London County Council;

“the principal Act” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act;

“the financial year” means the period from the first day of April one thousand nine hundred and thirty-four to the thirty-first day of March one thousand nine hundred and thirty-five both dates inclusive;

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“ the following six months ” means the period from the first day of April one thousand nine hundred and thirty-five to the thirtieth day of September one thousand nine hundred and thirty-five both dates inclusive;

“ the financial period 1934–1935 ” means the financial year and the following six months; and

“ the schedule ” means the schedule to this Act.

Expendi-
 ture on
 capital
 account
 during
 financial
 period
 1934–1935.

3.—(1) The purposes for which during the financial period 1934–1935 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums not exceeding those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

Amount of
 further ex-
 penditure
 which Trea-
 sury may
 authorise in
 case of in-
 sufficiency.

4. The sums which the Council may be authorised by the Treasury under the powers of section 5 (Power to raise further money in case of insufficiency) of the principal Act to expend on capital account during the financial period 1934–1935 in case any of the amounts specified in Part I of the schedule are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the third and fourth columns respectively of Part II of the schedule.

Amount
 authorised
 to be lent
 to and
 borrowed
 by local
 authorities
 and others
 during
 financial
 period
 1934–1935.

5. The sums which during the financial period 1934–1935 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums not exceeding those specified in the second and third columns respectively of Part III of the schedule in relation to such bodies and persons respectively.

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15. London County Council (General Powers) Act 1925.	Acquisition of property for widening of the Strand between George Court and Villiers Street.	—	—	—	—	33,340	—
16. Royal Victoria and other Docks Approaches (Improvement) Act 1929.	Contributions towards cost of acquisition of property improvements and works &c.	425,000	340,000	—	—	85,000	—
17. Local Government Act 1929.	Acquisition of property provision reconstruction extension alteration and equipment of general and special hospitals and mental and public assistance institutions.	*	—	—	—	548,770	237,200
18. London County Council (Money) Act 1930.	Repayment of local bonds for housing (in excess of amount accumulated in sinking fund).	—	—	—	—	—	1,703,410
19. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property and execution of works in connection with street improvements at Vauxhall Cross.	617,000	10,000	—	—	85,280	16,200
20. Town and Country Planning Act 1932.	Acquisition of property compensation &c.	*	—	—	—	50,000	—
21. Children and Young Persons Act 1933.	Acquisition of property provision and equipment of remand home.	*	—	—	—	20,000	16,000
Carried forward							5,222,125
							6,714,990

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† In addition to the methods of raising money authorised by the principal Act the Council are empowered by virtue of section 87 of the Housing Act 1925 with the consent of the Minister of Health to raise by the issue of bonds any sums which they have power to borrow for the purposes of that Act. The money to be raised for expenditure on capital account for housing purposes during the financial period 1934-1935 will however not exceed a total of £6,913,650.

A.D. 1934.

A.D. 1934.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1935. (6)	Estimated Requirement for Half-year ending 30th September 1935. (7)
		Total Estimate as shown in previous Money Acts. (3)	Expenditure to 31st March 1934 (Approximate). (4)	Revised Estimate where necessary. (5)		
	Brought forward	£ -	£ -	£ -	£ 6,714,990	£ 5,222,125
22. Any other Act	To provide for possible expenditure for purposes authorised by Parliament but not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	—	—	—	50,000	25,000
					6,764,990	5,247,125
				Carried forward	-	- £12,012,115

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THE SCHEDULE—*continued.*

A.D. 1934.

Brought forward . £12,012,115

PART II.

EXPENDITURE WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PART I OF
THIS SCHEDULE.

Acts for the Purposes of which the Expenditure may be authorised.	Purposes of Expenditure.	During Year ending 31st March 1935.	During Six Months ending 30th September 1935.
(1)	(2)	(3)	(4)
23. All or any of the Acts referred to in this schedule.	General enlargement of spending power to provide under Treasury sanction for possible further ex- penditure for purposes in- cluded in the foregoing estimates.	£ 1,500,000	£ 1,000,000

£2,500,000

PART III.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and Persons to whom Money may be lent.	During Year ending 31st March 1935.	During Six Months ending 30th September 1935.
(1)	(2)	(3)
24. Metropolitan borough councils . . .	£ 750,000	£ 500,000
25. Governors of educational institutions managers of special and approved schools and committees of school treatment centres	6,000	1,000
26. Sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923	50,000	25,000
27. The above-mentioned bodies and per- sons such further sum or sums as may be approved by the Treasury not exceeding	500,000	250,000
Total	‡1,306,000	‡776,000

£2,082,000

Carried forward . . . £16,594,115

‡ The provision for advances to persons or bodies of persons under the Housing Act 1925 is included under item 14 of this schedule.

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A.D. 1934. THE SCHEDULE—*continued.*

Brought forward - £16,594,115

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1933 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1934 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to Number of Item in a foregoing Part of this Schedule.	Purposes of Expenditure or Loan.	Amount (Approximate).
1	Metropolis Management Act 1855 and various Acts relating to main drainage - - - - -	£ 81,490
2	Metropolis Management Act 1855 and various Acts authorising improvements and works - - - - -	528,300
5	Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879 &c. - - - - -	6,800
6	Local Government Act 1888 - - - - -	20,965
7	Local Government Act 1888 and sundry Acts relating to bridges - - - - -	12,420
8	Local Government Act 1888 and County Office Site (London) Act 1906 - - - - -	1,000
9	Lunacy and Mental Treatment Acts 1890 to 1930 &c.	146,990
10	Open Spaces Act 1906 and various Acts relating to parks &c. - - - - -	2,210
11	Mental Deficiency Acts 1913 to 1927 - - - - -	6,925
12	London County Council (Tramways and Improvements) Act 1920 - - - - -	9,050
13	Education Act 1921 &c. - - - - -	190,000
14	Housing Acts 1919 1923 1924 1925 and 1930 - - - - -	858,650
15	London County Council (General Powers) Act 1925	25,000
16	Royal Victoria and other Docks Approaches (Improvement) Act 1929 - - - - -	85,000
17	Local Government Act 1929 - - - - -	393,515
19	London County Council (Vauxhall Cross Improvement) Act 1931 - - - - -	90,000
20	Children and Young Persons Act 1933 - - - - -	15,000
	Carried forward - - - - -	2,473,315 £16,594,115

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THE SCHEDULE—*continued.*

A.D. 1934.

Brought forward - £16,594,115

Reference to Number of Item in a foregoing Part of this Schedule.	Purposes of Expenditure or Loan.	Amount (Approximate).
	Brought forward - - -	£ 2,473,315
22	Any other Act - - -	67,000
23	General enlargement of spending powers under Treasury sanction - - -	974,810
24	Loans to metropolitan borough councils - -	1,250,000
25	Loans to managers of special and approved schools &c. - - -	2,000
26	Loans to sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923 - - -	31,000
27	Further loans to bodies and persons mentioned in the foregoing items 24 25 and 26 - - -	750,000
		5,548,125

£5,548,125

NET AGGREGATE NEW POWERS OF EXPENDITURE OR
 LOAN (FOR THE PURPOSES OF WHICH THE COUNCIL
 MAY RAISE MONEY BY BORROWING OR OTHERWISE).

For Council—	£	£
For year ending 31st March 1935 - - -	4,772,100	
For six months ending 30th September 1935 - -	6,224,890	
		10,996,990
For Loans—		
For year ending 31st March 1935 - - -	23,000	
For six months ending 30th September 1935 - -	26,000	
		49,000
		<u>£11,045,990</u>

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6. Any money lent by the Council to governors of educational institutions or to managers of special and approved schools or to committees of school treatment centres in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

A.D. 1934.

—
Periods for
repayment
of loans to
certain
bodies.

A.D. 1934.

The SCHEDULE referred to in the foregoing Act.

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1934 TO 30TH SEPTEMBER 1935 FOR
CAPITAL EXPENDITURE.

(1) Acts for the Purposes of which Money may be expended.	(2) Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			(6) Estimated Requirement for Year ending 31st March 1935.	(7) Estimated Requirement for Half-year ending 30th September 1935.
		(3) Total Estimate as shown in previous Money Acts.	(4) Expendi- ture to 31st March 1934 (Approx- imate).	(5) Revised Estimate where necessary.		
1. Metropolis Management Act 1855 and various Acts relating to main drainage.	Provision of pumping stations outfalls machinery sewers sewage treatment plant and other purposes.	£ *	£ —	£ —	£ 162,000	£ 74,280
2. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements contributions to cost of local improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	*	—	—	681,450	169,600
3. Sale of Gas Act 1859 and Metropolis Gas Act 1861.	Provision of new office for testing gas meters.	*	—	—	8,550	—

A.D. 1934.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1935. (6)	Estimated Requirement for Half-year ending 30th September 1935. (7)
		Total Estimate as shown in previous Money Acts. (3)	Expenditure to 31st March 1934 (Approximate). (4)	Revised Estimate where necessary. (5)		
	Brought forward	£	£	£	£	£
10. Open Spaces Act. 1906 and various Acts relating to parks open spaces gardens public walks and pleasure grounds.	Acquisition laying-out and improvement of open spaces parks gardens public walks and pleasure grounds contributions to cost thereof and other purposes connected therewith.	*	—	—	100,500	—
11. Mental Deficiency Acts 1913 to 1927.	Acquisition of property provision of buildings for accommodation of mental defectives and provision of equipment.	*	—	—	6,825	100
12. London County Council (Tramways and Improvements) Act 1920.	Acquisition of property and execution of works in connection with widenings of Old Street and Kingsland Road and Cable Street and Brook Street.	608,700	278,405	—	67,720	50,000
13. Education Act 1921 and Acts amending or extending the same.	Acquisition of property provision and equipment of schools and other purposes.	*	—	—	220,000	140,500
14. Housing Acts 1919 1923 1924 1925 and 1930.	Carrying out schemes acquisition of property erection of dwellings advances to persons or bodies of persons and other purposes.	*	—	—	†4,200,000	†2,713,650